

2. **As by a letter, recital, &c.** — The statute will be satisfied, if the trust can be manifested and proved by any subsequent acknowledgment by the trustee, as by an express declaration by him (*f*), or any memorandum to that effect (*g*), or by a letter under his hand (*h*), by his [*56] answer in *Chancery (*a*), or by an affidavit (*b*), or by a recital in a bond (*c*), or deed (*d*), &c.; and the

(*f*) *Ambrose v. Ambrose*, 1 P. W. 321; *Crop v. Norton*, 9 Mod. 233.

(*g*) *Bellamy v. Burrow*, Cas. t. Talb. 98; and see *Re Bennett's Settlement Trusts*, 17 L. T. N. S. 438; 16 W. R. 331.

(*h*) *Forster v. Hale*, 3 Ves. 696; S. C. 5 Ves. 308; *Morton v. Tewart*, 2 Y. & C. Ch. Ca. 67; *Bentley v. Mackay*, 15 Beav. 12; *Childers v. Childers*, 1 De G. & J. 482; *Smith v. Wilkinson*, cited 3 Ves. 705; *O'Hara v. O'Neill*, 7 B. P. C. 227; and see *Gardner v. Rowe*, 2 S. & S. 354.

(*a*) *Hampton v. Spencer*, 2 Vern. 288; *Nab v. Nab*, 10 Mod. 404; *Cottingham v. Fletcher*, 2 Atk. 155; *Ryall v. Ryall*, 1 Atk. 69, *per* Lord Hardwicke; *Wilson v. Dent*, 3 Sim. 385. A bill differed from an answer, as it was not signed by the party. See, however, *Butler v. Portarlington*, 1 Conn. & Laws. 1.

(*b*) *Barkworth v. Young*, 4 Drew. 1.

(*c*) *Moorcroft v. Dowding*, 2 P. W. 314.

(*d*) *Deg v. Deg*, 2 P. W. 412.

16 Chy. 642; *Brown v. Copron*, 24 Chy. 91. The testimony of a single witness has been held insufficient. *Miller v. Thatcher*, 9 Tex. 482; 60 Am. Dec. 172; *Johnson v. Deloney*, 35 Tex. 48. For the distinction between an unconditional deed of trust and one in the nature of a mortgage, see *Koch v. Briggs*, 14 Cal. 256; 73 Am. Dec. 651; *Hoffman v. Mackall*, 5 Ohio St. 124; 64 Am. Dec. 637; determined by the intention of the parties, *Reece v. Allen*, 5 Gilm. 236; 48 Am. Dec. 336. Parol is admissible to show the purpose of an instrument. *Morris v. Budlong*, 78 N. Y. 553. One holding security for debt is only a mortgagee. *Beatty v. Brummett*, 94 Ind. 79. It may be shown that a deed of trust is fraudulent. *Ashley v. Robinson*, 29 Ala. 112; 65 Am. Dec. 387. In Minnesota trusts by parol are very strictly barred by statute, but if partly executed the court will decree specific performance. *Wentworth v. Wentworth*, 2 Minn. 277; 72 Am. Dec. 97; *Catlin v. Fletcher*, 9 Minn. 88. In the province of Ontario any subsequent acknowledgment in writing, declaring the trust, will be sufficient, and it will relate back to the creation of the trust. *Harper v. Patterson*, 14 C. P. 538. Bill did not allege any writing evidencing the trust, but was taken *pro confesso*; as the facts were not denied, the defendant was declared a trustee. *McNabb v. Nicholl*, 3 L. J. N. S. 21. An attorney took a conveyance in trust for a client, but did not sign any writing as to it; afterwards he made an oral agreement to accept the property in payment of two notes, which was binding on him. *Fleming v. Duncan*, 17 Chy. 76. Trust might be shown by parol where the Statute of Frauds was not set up in the answer. *Shaw v. Shaw*, 17 Chy. 282. Trust agreement may be shown by parol. *Williams v. Jenkins*, 18 Chy. 536. Statute may set up, though not specially pleaded. *Wilde v. Wilde*, 20 Chy. 521. Notwithstanding the statute, the plaintiff could enforce an agreement to attend a sale, and as an agent, buy for him. *Ross v. Scott*, 22 Chy. 29; see *McManus v. McManus*, 24 Chy. 118.